

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shalini Tripathi	Team: Team # 4	CCRB Case #: 201108680	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 07/05/2011 6:50 PM	Location of Incident: in the front yard of § 87(2)(b) and inside the 75th Precinct station house		18 Mo. SOL 1/5/2013		Precinct: 75
Date/Time CV Reported Wed, 07/06/2011 1:54 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 07/06/2011 1:54 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Hugo Ortega	03534	935438	NARCBBN
2. SGT Michael White	04207	907749	NARCBBN
3. DT3 Ronald Reynolds	05746	937368	NARCBBN
4. DT3 Dennis Friendly	02755	930185	NARCBBN
5. POM Jose Higa	31380	930354	NARCBBN
6. An officer			NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Michelle Martinez	07087	935258	NARCBBN
2. DT3 Adrian Chatman	06828	932453	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Hugo Ortega	Discourtesy: Det. Hugo Ortega spoke obscenely and rudely to § 87(2)(b) and § 87(2)(b) in the front yard of § 87(2)(b) and inside of the 75th Precinct station house.	A . Unsubstantiated
B . DT3 Hugo Ortega	Abuse: Det. Hugo Ortega threatened § 87(2)(b) with the use of force in the front yard of § 87(2)(b)	B . Unsubstantiated
C . An officer	Discourtesy: An officer spoke obscenely and rudely to § 87(2)(b) in the front yard of § 87(2)(b)	C . Officer(s) Unidentified
D . SGT Michael White	Off. Language: Sgt. Michael White made remarks to § 87(2)(b) based upon race inside of the 75th Precinct station house.	D . Unsubstantiated
E . DT3 Ronald Reynolds	Off. Language: Det. Ronald Reynolds made remarks to § 87(2)(b) based upon race inside of the 75th Precinct station house.	E . Unsubstantiated
F . DT3 Dennis Friendly	Off. Language: Det. Dennis Friendly made remarks to § 87(2)(b) based upon race inside of the 75th Precinct station house.	F . Unsubstantiated
G . POM Jose Higa	Off. Language: PO Jose Higa made remarks to § 87(2)(b) and § 87(2)(b) based upon race inside of the 75th Precinct station house.	G . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
H . SGT Michael White	Abuse: Sgt. Michael White did not obtain medical treatment for § 87(2)(b) inside of the 75th Precinct station house.	H . Unsubstantiated
I . DT3 Hugo Ortega	Abuse: Det. Hugo Ortega did not obtain medical treatment for § 87(2)(b) inside of the 75th Precinct station house.	I . Unsubstantiated
J . DT3 Ronald Reynolds	Abuse: Det. Ronald Reynolds did not obtain medical treatment for § 87(2)(b) inside of the 75th Precinct station house.	J . Unsubstantiated
K . DT3 Dennis Friendly	Abuse: Det. Dennis Friendly did not obtain medical treatment for § 87(2)(b) inside of the 75th Precinct station house.	K . Unsubstantiated
L . POM Jose Higa	Abuse: PO Jose Higa did not obtain medical treatment for § 87(2)(b) inside of the 75th Precinct station house.	L . Unsubstantiated

Case Summary

§ 87(2)(b) filed a complaint with the CCRB via the call processing system on July 6, 2011 (encl. 18 - 19). On July 5, 2011, at approximately 6:50 PM, officers entered the front yard of § 87(2)(b)'s home, located at § 87(2)(b) in Brooklyn. The following allegations resulted:

- **Allegation A - Discourtesy: Det. Hugo Ortega spoke obscenely and rudely to** § 87(2)(b) **and** § 87(2)(b) **in the front yard of** § 87(2)(b) **and inside of the 75th Precinct station house.**
- **Allegation B – Abuse of Authority: Det. Hugo Ortega threatened** § 87(2)(b) **with the use of force in the front yard of** § 87(2)(b)

§ 87(2)(g)

- **Allegation C – Discourtesy: An officer spoke obscenely and rudely to** § 87(2)(b) **in the front yard of** § 87(2)(b)

§ 87(2)(g)

- **Allegation D – Offensive Language: Sgt. Michael White made remarks to** § 87(2)(b) **based upon race inside of the 75th Precinct station house.**
- **Allegation E – Offensive Language: Det. Ronald Reynolds made remarks to** § 87(2)(b) **based upon race inside of the 75th Precinct station house.**
- **Allegation F – Offensive Language: Det. Dennis Friendly made remarks to** § 87(2)(b) **based upon race inside of the 75th Precinct station house.**
- **Allegation G – Offensive Language: PO Jose Higa made remarks to** § 87(2)(b) **based upon race inside of the 75th Precinct station house.**
- **Allegation H - Abuse of Authority: Sgt. Michael White did not obtain medical treatment for** § 87(2)(b) **inside of the 75th Precinct station house.**
- **Allegation I - Abuse of Authority: Det. Hugo Ortega did not obtain medical treatment for** § 87(2)(b) **inside of the 75th Precinct station house.**
- **Allegation J - Abuse of Authority: Det. Ronald Reynolds did not obtain medical treatment for** § 87(2)(b) **inside of the 75th Precinct station house.**
- **Allegation K - Abuse of Authority: Det. Dennis Friendly did not obtain medical treatment for** § 87(2)(b) **inside of the 75th Precinct station house.**
- **Allegation L - Abuse of Authority: PO Jose Higa did not obtain medical treatment for** § 87(2)(b) **inside of the 75th Precinct station house.**

§ 87(2)(g)

§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b)

Call Processing System Message

§ 87(2)(b) filed this complaint with the CCRB via the call processing system on July 6, 2011 (encl. 19). § 87(2)(b) stated in this message that she was at home when 9-10 plainclothes officers arrived in an unmarked white van, executed a search warrant, and then arrested her, § 87(2)(b) and § 87(2)(b). § 87(2)(b) stated that the officers were five black males, two white males, and one Hispanic male. § 87(2)(b) stated in this initial narrative that one of these officers referred to her family members as “niggas” inside the 75th Precinct station house and also indicated that the primary reason she filed this complaint was because she felt that she and her family members were falsely arrested for selling drugs when in reality, none of them have ever sold drugs. § 87(2)(b) also stated that she had told the officers that she was diabetic, but the officers refused to “believe” her, and for this reason, she had not taken medication for the condition while in police custody. § 87(2)(b) did not specify whether or not she had asked for medical treatment from officers.

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on July 20, 2011 (encl. 20 - 25). On July 5, 2011, § 87(2)(b) was throwing a Fourth of July party in the front yard of her residence, located at § 87(2)(b) in Brooklyn. At approximately 6:50 PM, § 87(2)(b) left the party to buy something at a nearby store. While walking to the store, she was stopped by PO1, who asked what she had in her hand. PO1, who remains unidentified, was a male who did not display his shield. § 87(2)(b) told PO1 that she had five dollars in her hand and said that she was going to a store. PO1 told § 87(2)(b) to go back to the yard of her house. § 87(2)(b) thought PO1 was looking for one of her daughters, § 87(2)(b) who is well-known around the neighborhood because she has psychiatric problems and is homeless. § 87(2)(b) asked PO1 why he wanted her to go back to the yard, but he did not answer her. § 87(2)(b) did not state whether or not there is a gate to her front yard. However, later in her CCRB statement, § 87(2)(b) stated that when she first saw PO1, he and PO2 had chased § 87(2)(b) into her yard. PO2, identified by the CCRB as Det. Hugo Ortega, was a short, skinny Hispanic male who stood about 5’3”, looked to be forty years old, had dark skin, short hair, and wore khaki shorts and a shirt. In her initial complaint statement, § 87(2)(b) stated that the officers came to her house in an unmarked van and subsequently executed a search warrant at the location.

Although she could not describe the other involved officers, § 87(2)(b) said she wrote down the following shield numbers of the officers who went to her house: #2755 [Investigator’s

note: this shield belongs to Det. Friendly], #5746 [Investigator's note: this shield belongs to Det. Ronald Reynolds], #4207 [Investigator's note: this shield belongs to Sgt. Michael White], #2138

§ 87(2)(g)

#3536 § 87(2)(g)

§ 87(2)(b) asked PO1 why the officers wanted her to go into the yard, but PO1 would not give her an answer. PO1 then entered the yard with Det. Ortega and arrested § 87(2)(b). Suddenly, approximately five or six other officers appeared at the scene and also entered the yard. § 87(2)(b) heard someone say, "Put the handcuffs on her!" § 87(2)(b) asked why they wanted to arrest her, but PO1 still did not answer her.

The § 87(2)(b) family members were placed in a long white truck. They drove to the next block, Glenmore Avenue, and stayed parked there for approximately one hour. During this time, all of the officers returned to § 87(2)(b)'s yard without a search warrant and found someone's bag there. They drove the van around for two or three hours, during which time the family begged to be taken to the precinct because § 87(2)(b) has diabetes and was not feeling well. § 87(2)(b) requested to be taken to a hospital three or four times while they were in the van but the officers simply laughed at her. When the officers finally took § 87(2)(b) to the 75th Precinct, Det. Ortega called all of the § 87(2)(b) family members "niggers" and "crackheads." At a later point in the interview, § 87(2)(b) stated that all five officers who were at her house called her family members "niggers" and "crackheads." § 87(2)(b) asked again for medical treatment four or five times while at the stationhouse but the officers just called her a "crackhead" and continued to refuse to take her to a hospital.

§ 87(2)(b) stayed in Central Booking for approximately three days, and was not given insulin during this entire period. She did not ask to go to a hospital from Central Booking, but reiterated that because she takes daily medications, including various pills, she needed to go to a hospital. When questioned about her medications, § 87(2)(b) stated that she did not know the names or dosages of the medications she takes on a daily basis.

Victim: § 87(2)(b)

- § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on July 20, 2011 (encl. 26 - 31). On July 5, 2011, at approximately 6:50 PM, § 87(2)(b) was at a party at her mother's house, which is located at § 87(2)(b) in Brooklyn. § 87(2)(b)'s mother is § 87(2)(b). § 87(2)(b) saw her sister, § 87(2)(b) at a neighborhood liquor store. § 87(2)(b) is schizophrenic and lives on the street. For this reason, people who know § 87(2)(b) usually give her things such as food and clothing. On July 5, 2011, someone had given § 87(2)(b) a bag full of clothing and she asked § 87(2)(b) to take it to her mother's house, which § 87(2)(b) agreed to do. § 87(2)(b) had placed her wallet, cell phone, Bible, and keys, inside this bag. § 87(2)(b) suddenly left the yard and went around the street corner. When she returned to the yard, § 87(2)(b) saw that PO1, identified by the CCRB as Det. Hugo Ortega, was following

her. § 87(2)(b) described Det. Ortega as a bald, black male with a heavy build, beady eyes, looked to be in his mid-forties, stood about 5'8" or 5'9", and was clean-shaven.

PO2 also approached the yard, and also did not have his shield displayed or otherwise identify himself. PO2, who § 87(2)(b) described only as another black male officer, remains unidentified. PO2 opened the gate enclosing § 87(2)(b)'s front yard and entered the yard, followed by Det. Ortega. When § 87(2)(b) asked the officers what they were doing, PO2 replied, "Fuck you, mind your own business." PO3, identified by the CCRB as Det. Michelle Martinez, was the only female officer at the scene. Det. Martinez refused to walk through the gate and onto the § 87(2)(b)'s property. After the officers entered the gate, § 87(2)(b) took pictures of some members of the police team.

§ 87(2)(b) informed the officers that the house was private property. When Det. Ortega said that he was following § 87(2)(b) told him to wait where he was, and that she would get her mother to speak with him.

§ 87(2)(b) told the officer that whatever § 87(2)(b) had done, she had done around the corner and not on her mother's property. Det. Ortega replied, "Shut the fuck up," "Get the fuck back, this is an investigation." When § 87(2)(b) asked the officers why they were being disrespectful, Det. Ortega told her, "Have a seat, mind your fucking business like I told you. Do you want to get smacked?"

§ 87(2)(b) stated that she did not know why the officers were treating her like this, because her sister was well-known around the neighborhood as a schizophrenic who lives on the streets and who often has run-ins with the law. She thought the officers were making a scene in her mother's yard for no reason.

§ 87(2)(b) then approached and asked Det. Ortega why he was bothering § 87(2)(b). In response, Det. Ortega threatened to take her to jail, too. § 87(2)(b) said that she was not going anywhere, because they were on her property, and Det. Ortega said, "I don't give a fuck what you got, you're going to jail, too. You know what's going on. We were told to lock you up." Det. Ortega told § 87(2)(b) that they wanted to lock up "the whole family." § 87(2)(b) asked Det. Ortega what he meant by that, because neither she, her sister, nor her uncle, § 87(2)(b) lived at the address. It was at this point that § 87(2)(b) her uncle, woke up from a nap and came out to the front steps of the house and asked the officers what was going on. The officers told him that he would also have to go to jail. When § 87(2)(b) asked why they wanted to take him to jail, the officers told him that if he did not go with them, they would push him down the stairs.

§ 87(2)(b) stated that four white male police officers searched the yard, looking on the ground and through the trash cans, but could not provide a more detailed description of these officers. § 87(2)(b) § 87(2)(b) and § 87(2)(b) were all put into a police van and taken to the 75th Precinct. At the precinct, Det. Ortega called all four family members "crackhead niggers." He told them, "This is what you get when you've got crackhead family members," and "You're all fucking crackhead niggers, you're all going down." Det. Ortega also refused to provide § 87(2)(b) who has diabetes, with medical treatment. § 87(2)(b) stated that she asked for medical treatment for her mother three times when they were in Central Booking, and that her mother asked for medical attention twice while they were still in the precinct.

Photographs

§ 87(2)(b) took photographs of the officers involved in this incident before she was handcuffed and brought these to her CCRB interview. These photographs were printed out, labeled #1 - #5, and placed in the case file (encl. 13 - 17). The CCRB identified who these

officers were by comparing § 87(2)(b)'s photographs to MOS file photographs and found that photograph #1 is of Det. Ronald Reynolds, photograph #2 is of Sgt. Michael White, photograph #3 is Det. Hugo Ortega, photograph #4 is PO Jose Higa, and photograph #5 is Det. Dennis Friendly.

§ 87(2)(b) stated that PO1, the sole subject officer in her narrative, was the officer in photograph #3, who is Det. Hugo Ortega. § 87(2)(b) alleged that each one of the photographed officers used offensive language as well as refused to provide her medical treatment.

Witness: § 87(2)(b)

- § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on July 20, 2011 (encl. 32 - 36). On July 5, 2011, at approximately 6:50 PM, § 87(2)(b) had been sleeping at the house of his sister, § 87(2)(b) for about an hour. The house is located at § 87(2)(b) in Brooklyn. He suddenly woke up because he heard a commotion outside. When he went to the front steps of the house he saw several men who § 87(2)(b) later found out were officers, coming inside the yard.

§ 87(2)(b) recalled in particular three officers because they had arrested him on approximately fourteen previous occasions over the previous ten years. PO1, identified by the CCRB as Det. Dennis Friendly, was described by § 87(2)(b) as a black male who looked to be in his late thirties with a slim build, stood about 6'2", weighed about 165 pounds, and had a short Afro or fade haircut. PO2, identified by the CCRB as Sgt. Michael White, was another officer at the scene. § 87(2)(b) described Sgt. White as a black male who wore glasses, a white shirt, two earrings, had a light beard and mustache, and a medium build, 180 pounds, 6'0". § 87(2)(b) described PO3, identified by the CCRB as Det. Ronald Reynolds, as a white male with a round face, brown hair in a crew cut, who looked to be in his forties, stood about 5'8" or 5'9", weighed about 220 pounds, and wore dark, short pants, a t-shirt with lettering on it. PO1 and PO3 knew his name is § 87(2)(b).

Det. Friendly asked § 87(2)(b) to get down the steps. When § 87(2)(b) asked him why he should go down the steps, Det. Friendly said that he was placing § 87(2)(b) under arrest. § 87(2)(b) asked him what he was being arrested for. Det. Friendly tried to grab § 87(2)(b)'s arm, but § 87(2)(b) did not allow him to. Det. Friendly grabbed his arm again and § 87(2)(b) went along with his orders because he did not want the officers to retaliate at him for non-compliance. He was processed through Central Booking and then sent to Rikers Island for eight days for no reason.

§ 87(2)(b) did not corroborate any of the allegations made by either § 87(2)(b) or § 87(2)(b) regarding the use of discourteous language, threat of arrest, a threat of physical force, or the denial of medical care for § 87(2)(b).

NYPD Statements:

Subject Officer: DETECTIVE HUGO ORTEGA

- § 87(2)(b) year old bald Hispanic male who stands 5'9", weighs 175 pounds, and has brown eyes.
- On the date of the incident, worked as the arresting officer for the 75th module field team from Brooklyn North Narcotics. He worked from 2:27 PM to 11:00 PM, with Sgt. Michael White and Det. Ronald Reynolds in plainclothes and in vehicle #§ 87(2)(b) an unmarked light blue KIA sedan.

Memo Book

Det. Ortega had the following entries in his memo book. At 4:00 PM he had a tac meeting with undercover #§ 87(2)(b) and undercover #§ 87(2)(b). At 6:50 PM, the team arrested four people in front of § 87(2)(b).

Arrest Reports

Det. Hugo Ortega filed arrest reports for § 87(2)(b) (encl. 37), § 87(2)(b) (encl. 38), and § 87(2)(b) (encl. 39) as a result of this incident. There was no arrest report generated for § 87(2)(b). Both § 87(2)(b) and § 87(2)(b) were charged with a § 87(2)(b). § 87(2)(b)'s arrest report had a top charge of violation of § 87(2)(b).

CCRB Testimony

Det. Ortega was interviewed at the CCRB on December 1, 2011 (encl. 43 - 45). On July 5, 2011, at approximately 6:50 PM, Det. Ortega received a communication from his narcotics field team that an undercover officer had bought approximately \$20 worth of crack cocaine from a female. The ghost following this woman informed the field team that she had gone to § 87(2)(b) to get the drugs. When the team went to that address, four people, § 87(2)(b) (b) § 87(2)(b) and § 87(2)(b) all of whom were identified by the ghost as having been involved with the drug transaction, were arrested.

Det. Ortega recalled that there were approximately seven civilians at the location, that many of these civilians were yelling and screaming, and that he recalled having to tell them several times, "If you don't step back, you're gonna get arrested, because you're intervening with us from us doing our jobs." He did not recall what other officers said to the civilians. He did not use discourteous language with the civilians, and did not recall hearing any other officer use discourteous language during this incident. He did not refer to anyone as a "crackhead" or a "crackhead nigger," and did not hear any other officer use those terms to refer to anyone. Det. Ortega recalled searching the following parts of the front yard for more narcotics: underneath the house steps, chairs, and trees. The search did not yield any more drugs. Det. Ortega did not recall which of the other team members assisted him with the search of the yard.

After § 87(2)(b) were put in the prisoner van, Det. Ortega did not interact with them in any capacity again. Det. Ortega stated that no one at the scene said anything to him about needing any kind of medical attention. Det. Ortega had arrested § 87(2)(b) for drug possession on approximately ten previous occasions. Det. Ortega said that the neighborhood is

his regular beat, and that he has seen the females around the neighborhood frequently in the past. Since the date of this incident, Det. Ortega has seen § 87(2)(b) around, but has not interacted with them in any way.

Subject Officer: SERGEANT MICHAEL WHITE

- § 87(2)(b) year old black male who stands 6'1", weighs 210 pounds, and has black hair and brown eyes.
- On the date of the incident, worked as the 75th Precinct team 1 module leader for Brooklyn North Narcotics. He worked from 2:25 PM to 11:00 PM, with the 75th Precinct team 1 module in plainclothes and in vehicle #§ 87(2)(b) a Kia minivan.

Memo Book

Sgt. White had the following memo book entries regarding this incident. At 6:54 PM, he noted the arrests of § 87(2)(b) § 87(2)(b) and § 87(2)(b) at § 87(2)(b) in regards to a narcotics transaction completed by Undercover #§ 87(2)(b). He noted that the arrests were made for violation of § 87(2)(b).

CCRB Testimony

Sgt. White was interviewed at the CCRB on January 19, 2012 (encl. 49 - 50). Sgt. White stated that during this incident on July 5, 2011, he did not himself use, and did not hear other members of the field team, use discourteous, obscene, or racially offensive language. He did not threaten any civilian with arrest or the use of physical force, and did not hear any other officer at the scene threaten any civilian with arrest or the use of physical force. Sgt. White did not recall searching the front yard of § 87(2)(b)'s house, and did not recall seeing any members of his field team search the yard. No member of the § 87(2)(b) family asked for any kind of medical attention or asked to go to a hospital.

Subject Officer: DETECTIVE RONALD REYNOLDS

- § 87(2)(b) year old bald white male who stands 5'10", weighs 207 pounds, and has green eyes.
- On the date of the incident, he was working as the Brooklyn North Narcotics auto team leader. He worked from 2:27 PM to 11:00 PM with Sgt. Michael White and Det. Hugo Ortega in plainclothes and was assigned vehicle #§ 87(2)(b) a light blue Kia minivan.

Memo Book

Det. Reynolds had the following entries related to this incident in his memo book. At 6:50 PM, four people were arrested in front of § 87(2)(b). At 9:00 PM, he arrived at the stationhouse.

CCRB Testimony

Det. Reynolds was interviewed at the CCRB on January 19, 2012 (encl. 54 - 55). Det. Reynolds did not hear any officer at the scene use discourteous or offensive language, did not

recall seeing any officer search the § 87(2)(b)'s yard, did not hear any officer threaten any civilian with the use of force and did not hear any member of the family ask for any kind of medical assistance.

Subject Officer: DETECTIVE DENNIS FRIENDLY

- *Det. Friendly is a § 87(2)(b) year old black male who stands 6'0", weighs 195 pounds, and has black hair and brown eyes.*
- *On the date of the incident, he was assigned to the Brooklyn North Narcotics prisoner van. He worked from 2:27 PM to 11:00 PM with PO Jose Higa in plainclothes.*

Memo Book

At 6:50 PM on this date, Det. Friendly noted four arrests in front of § 87(2)(b)

CCRB Testimony

Det. Friendly was interviewed at the CCRB on January 19, 2012 (encl. 58 - 59). Det. Friendly did not hear any officer at the scene use discourteous or offensive language, did not hear any officer threaten any civilian with the use of force, and did not hear any member of the family ask for any kind of medical assistance. Det. Friendly recalled that the team entered the yard under Sgt. White's supervision, and that every member of his field team except for PO Higa entered the § 87(2)(b)'s yard, but did not recall seeing any officer search the yard.

Subject Officer: PO JOSE HIGA

- *PO Higa is a § 87(2)(b) year old Hispanic male who stands who stands 5'6", weighs 190 pounds, and has black hair and brown eyes.*
- *On the date of the incident, he was assigned to the Brooklyn North Narcotics prisoner van. He worked from 2:27 PM to 11:00 PM with Det. Dennis Friendly in plainclothes.*

Memo Book

PO Higa had the following entry in his memo book related to this incident. At 6:50 PM, he picked up four arrests which had been made at § 87(2)(b)

CCRB Testimony

PO Higa was interviewed at the CCRB on March 15, 2012 (encl. 63 - 64). PO Higa did not hear any officer at the scene use discourteous or offensive language with a civilian, did not hear any officer threaten any civilian with the use of force, and did not hear any member of the § 87(2)(b) family ask for any kind of medical assistance. He did not recall which members of the field team entered the front yard of § 87(2)(b) and also could not recall if any officers searched the yard.

Witness Officer: DETECTIVE MICHELLE MARTINEZ

- § 87(2)(b) year old Hispanic female who stands 5'4", weighs 145 pounds, and has brown hair and brown eyes.
- On the date of the incident, she was assigned to the chase car for Brooklyn North Narcotics. She worked from 2:27 PM to 11:00 PM with Det. Adrian Chatman in plainclothes and in vehicle #§ 87(2)(b) a green Toyota Camry.

Memo Book

Det. Martinez noted at 6:50 PM that four people had been arrested as a result of an undercover narcotics transaction and that she went to this scene.

CCRB Testimony

Det. Martinez was interviewed at the CCRB on January 18, 2012 (encl. 67 - 68). Det. Martinez did not recall any relevant details about this incident.

Witness Officer: DETECTIVE ADRIAN CHATMAN

- Det. Chatman is a § 87(2)(b) year old black male who stands 5'11", weighs 180 pounds, and has black hair and brown eyes.
- On the date of the incident, Det. Chatman was assigned to the Brooklyn North Narcotics chase car from 2:27 PM to 11:00 PM, with Det. Michelle Martinez. Det. Chatman was dressed in plainclothes and assigned to vehicle #§ 87(2)(b) a green Toyota Camry.

Memo Book

At 6:50 PM on this date, Det. Chatman noted four arrests in front of § 87(2)(b)

CCRB Testimony

Det. Chatman was interviewed at the CCRB on March 15, 2012 (encl. 72 - 73). Det. Chatman recalled that on July 5, 2011, his field team was called to § 87(2)(b) in regards to a successful narcotics transaction by an undercover officer. Det. Chatman arrested a female at this location, but did not recall who this female was. Det. Chatman never entered the yard in front of § 87(2)(b) and did not see which officers from the team did enter the yard. Det. Chatman did not himself use discourteous or offensive language with anyone during this incident, and did not recall hearing any other officer at the location use such language. Det. Chatman did not recall hearing any officer threaten civilians with the use of force and also did not hear any member of the § 87(2)(b) family ask for any kind of medical attention.

Arrest for Incident and Disposition

- All criminal charges against § 87(2)(b) (encl. 109) and § 87(2)(b) (encl. 99) in connection with the incident on July 5, 2011, have been dismissed.
- On § 87(2)(b), § 87(2)(b) pled guilty to violation of § 87(2)(b). The following sentence was

imposed: § 87(2)(b)

Status of Civil Proceedings

- Neither § 87(2)(b) nor § 87(2)(b) have filed a Notice of Claim with the City of New York as of March 5, 2012, with regard to the incident (encl. 134).

Civilians' Criminal History

- As of April 4, 2012, Office of Court Administration records reveal no criminal convictions for § 87(2)(b)
- § 87(2)(b)
-

Civilians' CCRB History

- § 87(2)(b) and § 87(2)(b) have filed the following CCRB complaints:
 - § 87(2)(b)
 - § 87(2)(b)
 - § 87(2)(b)

Subject Officers' CCRB History

- Det. Hugo Ortega has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. 4).
- Sgt. Michael White has been a member of the service for seventeen years and there are no substantiated CCRB allegations against him (encl. 1 - 3).
- Det. Ronald Reynolds has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. 7 - 8).
- PO Jose Higa has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. 9).
- Det. Dennis Friendly has been a member of the service for nine years and there are four substantiated CCRB allegations against him (encl. 5 - 6).
 - In CCRB case #201001417, four allegations against Det. Friendly were substantiated. One was for force (physical force), the second was for abuse of authority (premises entered and/or searched), the third was for abuse of authority (threat of arrest), and the fourth was for abuse of authority (refusal to provide name and shield number). The sentence imposed for all four charges was command discipline.

Conclusion

Identification of Subject Officers

When § 87(2)(b) and § 87(2)(b) came to the CCRB, they brought with them several photographs of the involved officers. These photographs, numbered #1-#5, are located in the case file (encl. 13 - 17). Photograph #1 is Det. Ronald Reynolds, photograph #2 is Sgt. Michael White, photograph #3 is Det. Hugo Ortega, photograph #4 is PO Jose Higa, and photograph #5 is Det. Dennis Friendly.

§ 87(2)(b) stated in her CCRB testimony that she recalled interacting with five subject officers, who called her and her family members “crackhead niggers” and also refused to provide her with medical treatment. When asked to attach a specific allegation to a specific officer, § 87(2)(b) stated that all five officers had used discourteous and offensive language with her, and all five also had refused to provide her medical treatment. § 87(2)(b) provided five shield numbers which she had written down during the incident and stated that the shields belonged to the five subject officers in her narrative. These five officers are the same as the officers photographed. Because she made allegations against all five of these officers, one allegation of offensive language and one allegation of refusal to provide medical treatment each is pleaded against Det. Ronald Reynolds, Sgt. Michael White, Det. Hugo Ortega, PO Jose Higa, and Det. Dennis Friendly.

§ 87(2)(b) made allegations against two officers. One subject officer was the officer in photograph #3, identified by the CCRB as Det. Hugo Ortega. Det. Ortega was shown this photograph during his CCRB interview and confirmed that he was the officer in the photograph. § 87(2)(b) stated that Det. Ortega entered and searched her mother’s yard, used discourteous language with her, and also threatened her with the use of force. The second subject officer, PO2 in § 87(2)(b)’s narrative, told her, “Fuck you, mind your own business.” PO2 was described by § 87(2)(b) as a black male. At least four

officers at the scene – Det. Ortega, Det. Friendly, Sgt. White, and Det. Chatman - could have fit this description. Because she did not take a picture of this officer, and because the provided description is insufficient to positively identify PO2, this officer remains unidentified.

Investigative Findings and Recommendations

Allegation A - Discourtesy: Det. Hugo Ortega spoke obscenely and rudely to § 87(2)(b) and § 87(2)(b) in the front yard of § 87(2)(b) and inside of the 75th Precinct station house.

Allegation B – Abuse of Authority: Det. Hugo Ortega threatened § 87(2)(b) with the use of force in the front yard of § 87(2)(b)

§ 87(2)(b) alleged that Det. Ortega said to her, “Shut the fuck up,” and, “Get the fuck back, this is an investigation.” She also alleged that when she asked the officers why they were being disrespectful, Det. Ortega told her, “Have a seat, mind your fucking business like I told you. Do you want to get smacked?” At the 75th Precinct station house, Det. Ortega allegedly called the members of the § 87(2)(b) family “crackhead niggers,” and also told them, “This is what you get when you’ve got crackhead family members,” and “You’re all fucking crackhead niggers, you’re all going down.” § 87(2)(b) stated that all the officers who were present at her house had called her a “crackhead nigger,” and identified Det. Ortega as one officer who was at her house.

§ 87(2)(b) who was with § 87(2)(b) and § 87(2)(b) from the time they were taken from the yard to the time they arrived in Central Booking, did not corroborate the allegation that Det. Ortega used any kind of discourteous or offensive language during this incident.

Det. Ortega stated that he did not use any type of discourteous language during this incident, and none of the other officers interviewed recalled hearing him use discourteous language § 87(2)(b) or § 87(2)(b) § 87(2)(g)

Allegation C – Discourtesy: An officer spoke obscenely and rudely to § 87(2)(b) in the front yard of § 87(2)(b)

§ 87(2)(b) alleged that an officer at the scene told her, “Fuck you, mind your own business.” § 87(2)(g)

Allegation D – Offensive Language: Sgt. Michael White made remarks to § 87(2)(b) based upon race inside of the 75th Precinct station house.

Allegation E – Offensive Language: Det. Ronald Reynolds made remarks to § 87(2)(b) based upon race inside of the 75th Precinct station house.

Allegation F – Offensive Language: Det. Dennis Friendly made remarks to § 87(2)(b) based upon race inside of the 75th Precinct station house.

Allegation G – Offensive Language: PO Jose Higa made remarks to § 87(2)(b) based upon race inside of the 75th Precinct station house.

Allegation H - Abuse of Authority: Sgt. Michael White did not obtain medical treatment for § 87(2)(b) inside of the 75th Precinct station house.

Allegation I - Abuse of Authority: Det. Hugo Ortega did not obtain medical treatment for § 87(2)(b) inside of the 75th Precinct station house.

Allegation J - Abuse of Authority: Det. Ronald Reynolds did not obtain medical treatment for § 87(2)(b) inside of the 75th Precinct station house.

Allegation K - Abuse of Authority: Det. Dennis Friendly did not obtain medical treatment for § 87(2)(b) inside of the 75th Precinct station house.

Allegation L - Abuse of Authority: PO Jose Higa did not obtain medical treatment for § 87(2)(b) inside of the 75th Precinct station house.

§ 87(2)(b) alleged that all five officers involved in this incident referred to her and her family members as “crackhead niggers” after they arrived at the 75th Precinct station house and all five also denied providing her medical treatment. When asked to specify which officer corresponded to each allegation, § 87(2)(b) only reiterated that all five of the officers of whom she took pictures – identified by the CCRB as Sgt. White, Det. Reynolds, Det. Friendly, PO Higa, and Det. Ortega – used discourteous and offensive language with her.

§ 87(2)(b) also stated that she asked all five officers for medical attention several times while at the station house and at Central Booking because she takes several medications on a daily basis. However, when she was questioned at the CCRB about the type of medications she takes on a daily basis, she stated that she did not know what they were.

§ 87(2)(b) stated that Det. Ortega was the only officer who called the family members “crackhead niggers” and was also the only officer who refused to provide § 87(2)(b) with medical treatment. § 87(2)(b) did not make the allegation against any other officer. § 87(2)(b) did not corroborate the allegation that all five officers called the family members “crackhead niggers” and also did not corroborate the allegation that all five officers refused to provide § 87(2)(b) with medical treatment at the station house.

No officer interviewed for the purposes of this investigation recalled hearing any officer refer to any member of the § 87(2)(b) family as a “crackhead nigger” or otherwise use offensive language during any part of this incident. No officer interviewed for the purposes of this investigation recalled hearing § 87(2)(b) request medical attention or recalled hearing any member of the family state that she had any type of medical condition which required treatment.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date